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Submitter Information

Name: Anonymous Anonymous

Email: [REDACTED]

General Comment

Regarding the National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

As an American Content Strategist, writer, and editor that is enthusiastic about both technology and creative pursuits, I am extremely concerned about the way many players in Big Tech are handling AI development, safety, and intellectual property rights.

These AI systems threaten to destroy thousands of American jobs and small businesses with their disregard for copyright and demands for retroactive special carve-outs.

AI systems are made by copying works at a massive scale to "train" on, and these companies have already done so without consent or payment. These models take work they have no rights to and reassemble it to replace the people who created it. They use it to compete with us and eliminate our jobs and income

These companies want the administration to create exceptions and loopholes to legitimize the theft of creators' copyrighted work and provide a legal precedent while bypassing the courts and legislative process. They want to avoid giving small businesses and everyday Americans their due process and compensation.

All content on the internet is not free for use without compensation and attribution, and feeding copies into a machine does not make it "fair use."

If companies are given free reign to use anyone's intellectual property simply by feeding it into a machine, especially one that competes with the IP holders in the process, we will lose the incentive to create and innovate as well as the entire creative economy— not just in entertainment, but anywhere art and writing are needed in business as well.

Our nation has been built on the idea that people own what they create. Their writing, art, code, designs, music, and more have value— why will they create if it is to be immediately stolen by Google and Microsoft and used to create a cheaper alternative? How will individuals and small businesses make a living creating?

This administration's AI Action Plan should focus on ensuring a fair market built on the traditional American values, freedom, and just compensation. A plan that gives Big Tech carte blanche is no free market at all.

The government should ensure an opt-in framework so creators and everyday Americans can give permission for use and decide when and where our work is used.

Transparency is key. Training datasets need to be openly disclosed, so that their contents can be trusted and attributed. Clear labels should also be implemented so viewers can tell what content is AI generated.

Any AI Action Plan should ensure that creators are paid for work AI companies use. That may come through a licensing marketplace, a tax on AI that distributes profits to creators, or some other form, but fair payment must be rendered. If this work didn't have value, the AI companies would not need it— so they should pay for it. If they cannot afford to, then how valuable was the AI to begin with? We do not allow crime simply because a business cannot profit without it, and the same should apply here.

To protect American innovation, protect American creators. Do not allow or make new copyright exemptions that let Big Tech companies

exploit and steal from everyday Americans.

I love technology and see potential in machine learning and AI, but the path forward must protect American creators, incentivize their continued work, and ensure that companies pay for the content they use.

Thank you for the opportunity to comment on these important issues.